



POLICE DEPARTMENT

March 30, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Nisan Cornibert
Tax Registry No. 942770
81 Precinct
Disciplinary Case No. 2014-11499

The above-named member of the Department appeared before me on January 30, 2015, charged with the following:

1. Said Police Officer Nisan Cornibert, assigned to the 81 Precinct, on or about between July 20, 2006 through February 4, 2014, did knowingly associate with a person or organization reasonably believed to be engaged in, likely to engage in, or to have engaged in criminal activities.

P.G. 203-10, Page 1, Paragraph 2(C) - PUBLIC CONTACT -PROHIBITED
CONDUCT – GENERAL REGULATIONS

The Department was represented by Jordan Farnham, Esq. and Beth Douglas, Esq., Department Advocate's Office, and Respondent was represented by Michael Martinez, Esq.

Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent, an eight-year member of the Department, admitted that he maintained a telephone association with Person A. Person A was a childhood acquaintance known to have engaged in extensive criminal activity.

Respondent's friendship with Person A came to the attention of the Department on September 1, 2013. While off-duty that evening, Respondent and Person A spent time together at a night club. On their way home, Person A was involved in a minor motor vehicle accident on Atlantic Avenue and Williams Avenue in Brooklyn.

A motorist had opened their vehicle door directly into the window of Person A's car. The motorist, who was with a group of people, told Person A and Respondent to "get out of here." The motorist and two other cars began to follow Person A and Respondent. Fearing for his safety, Respondent waived down police for assistance and identified himself as a UMOS. The officers asked for Person A's license, discovered he was driving with a suspended license, and placed him under arrest.

At an official Department interview on February 4, 2014, Respondent was questioned about his relationship with Person A. The Internal Affairs Bureau (IAB) told Respondent about Person A's lengthy arrest record.

Respondent testified that he had known Person A since junior high school. In the years that followed, Respondent and Person A remained friends and occasionally spent

time together. Sometimes they would go to each others' homes and borrow each others' cars.

Respondent was a soldier in the military for four years before joining the Department. While home on military leave, Respondent would occasionally spend time with Person A at local night clubs.

Respondent's relationship with Person A did not change when he became a police officer. Before his interview with IAB, Respondent was aware that Person A had been arrested at least one time. Although he knew about that arrest, Respondent felt that he could still maintain a relationship with Person A. Respondent explained, "It's very unlikely that I come across someone that hasn't been arrested in my neighborhood."

Before his interview with IAB, Respondent learned about Person A's gun possession charge from Person A's wife. After confronting Person A about the charge, he had "very limited contact" with Person A. Sometimes Person A would telephone Respondent and Respondent would answer. Respondent added that he did not want to completely sever their friendship because "he was a good friend to me. He helped me out when I needed help."

On cross-examination, Respondent testified that Person A asked him to run a warrant check on his name once, which Respondent refused to perform. Respondent also stated that he accessed a public website on his home computer to learn the outcome of Person A's gun possession case.

When asked whether he intended to continue associating with Person A, Respondent stated, "there is no friendship between Mr. Person A and I now." Respondent

added, "But at the same time, you know, he's still a human being and if he called me, I would not hang up the phone. My number hasn't changed."

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 20, 2006. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has pled guilty to knowingly associating with Person A, a childhood friend he knew to have engaged in criminal activities.

The Department Advocate recommended a penalty of 15 vacation days for maintaining contact with a known criminal. In support of this recommendation, the Advocate cited two cases. In the first case, a six-year police officer with no prior disciplinary record negotiated a penalty of 20 vacation days for speaking with a close family friend before and after his arrest for drug trafficking. *Case No. 2011-5898* (September 17, 2012). In the second case, a 13-year detective with no prior disciplinary record negotiated a penalty of 15 vacation days for associating with two individuals who had felony records involving firearms charges. *Case No. 2012-7296* (April 30, 2013).

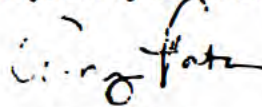
Respondent's attorney argued that the penalty was particularly harsh considering that Respondent distanced himself from Person A after learning about his pending gun charge. Respondent's attorney added that the *Patrol Guide* is vague when addressing the term "association." Answering phone calls or having a conversation over the telephone in an attempt to gradually end a friendship should not be considered "criminal

association." Further, upon learning of Person A's criminal record and pending charges, Respondent limited his personal contact with Person A to telephone conversations.

In determining a penalty recommendation, the Court considered the penalty in a recent case where a police officer with no disciplinary history maintained telephone contact with a friend known to have engaged in criminal activities: This officer forfeited ten vacation days. *Case No. 2012-7096* (Jul. 23, 2014). In all other recent criminal association cases, including the previous cases cited by the Advocate, the associations involved more than telephone contact. *Case No. 2011-3517* (Jan. 23, 2013); *Case No. 2011-3475* (Jan. 31, 2012).

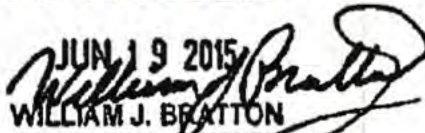
Thus, the penalty sought by the Advocate is disproportionate to the offense committed by Respondent. Based on recent case precedent, it is recommended that Respondent forfeit a penalty of ten vacation days.

Respectfully submitted,



Amy J. Porter
Assistant Deputy Commissioner – Trials

APPROVED

JUN 19 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER

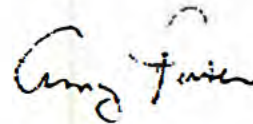
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER NISAN CORNIBERT
TAX REGISTRY NO. 942770
DISCIPLINARY CASE NO. 2014-11499

In 2014, Respondent received an overall rating of 4 “Highly Competent” on his annual performance evaluation. He was rated 4 “Highly Competent” in 2013, and 3.5 “Highly Competent/Competent” in 2012. [REDACTED]
[REDACTED]

Respondent has no prior disciplinary history and has one medal for Meritorious Police Duty.

For your consideration.



Amy J. Porter
Assistant Deputy Commissioner – Trials